

The Andhra Pradesh And Madras (Alteration Of Boundaries) Act, 1959

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The Andhra Pradesh And Madras (Alteration Of Boundaries) Act, 1959

UNION OF INDIA

India

The Andhra Pradesh And Madras (Alteration Of Boundaries) Act, 1959

Act 56 of 1959

Published on 24 December 1959

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The Andhra Pradesh And Madras (Alteration Of Boundaries) Act, 1959

ACT NO. 56 OF 1959

1347.

In December 1956, the Chief Ministers of Madras and Andhra Pradesh requested Shri H.V. Pataskar to mediate in setting the boundaries of the two States. Shri Pataskar submitted his report in July 1957, which was followed by a supplementary report.

2. Shri Pataskar's award was accepted by the Chief Ministers of Madras and Andhra Pradesh on behalf of their respective Governments at the meeting of the Southern Zonal Council held at Hyderabad on the 28th September, 1957.

3. According to Shri Pataskar's award, the following territorial adjustments are to be made between the two States:-

(i) 318 villages from the Tiruttani Chittoor and Puttur taluks of Chittoor district and a small forest area in the Palamner taluk will be transferred from Andhra Pradesh to Madras; and

(ii) 148 villages of the Trivalvular and Ponneri taluks of Chingleput district and 3 villages of the Krishnagiri taluk of Salem district will be transferred from Madras to Andhra Pradesh.

Certain forest areas and tanks enclosed by or adjoining the transferred villages will also be transferred from Andhra Pradesh to Madras or from Madras to Andhra Pradesh, as the case may be.

4. The Bill seeks to give effect the award. It also makes the necessary supplemental and incidental provisions relating to representation in the Legislatures, authorisation of expenditure and other matters.

5. Under the proviso to Article 3 of the Constitution, the Bill was referred by the President on the 16th April, 1959, to the Legislatures of the States of Andhra Pradesh and Madras for expressing their views and the two Legislatures have approved of its provision. - Gazette of India, 12-8-1959, Pt. II, section 2, Extra, p. 755.

[24th December, 1959.]

An Act to provide for the alteration of boundaries of the States of Andhra Pradesh and Madras and for matters connected therewith.

BE it enacted by Parliament in the Tenth Year of the Republic of India as follows:--

Part I ? Preliminary

1.

Short title and commencement.

(1)

This Act may be called the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959.

(2)

It shall come into force on such [date]

[1st April 1960. See Notification No. S. O. 2863, dated 29th December, 1959, Gazette of India, Extraordinary, 1959, Pt. II, Section 3 (ii), p. 611]

as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

In this Act, unless the context otherwise requires,--

(a)

"appointed day" means the date appointed under sub-section (2) of section 1 for the coming into force of this Act;

(b)

"assembly constituency", "council constituency" and "parliamentary constituency" have the same meanings as in the Representation of the People Act, 1950 (43 of 1950

);

(c)

"law" includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having the force of law in the whole or in any part of Andhra Pradesh or Madras;

(d)

"notified order" means an order published in the Official Gazette;

(e)

"sitting member", in relation to either House of Parliament or of the Legislature of a State, means a person who, immediately before the appointed day, is a member of that House;

(f)

"transferred territories" means--

(i)

in relation to the State of Andhra Pradesh, the territories specified in the Second Schedule and transferred from that State to Madras, and

(ii)

in relation to the State of Madras, the territories specified in the First Schedule and transferred from that State to Andhra Pradesh;

(g)

"treasury" includes a sub-treasury;

(h)

any reference to a district, taluk, firka, village or other territorial division of a State shall be construed as a reference to the area comprised within that territorial division on the 1st day of July, 1957.

Part II ? Transfer Of Territories

3.

Transfer of territories.

As from the appointed day, there shall be added--

(a)

to the State of Andhra Pradesh, the territories specified in the First Schedule which shall thereupon cease to form part of the State of Madras; and

(b)

to the State of Madras, the territories specified in the Second Schedule which shall thereupon cease to form part of the State of Andhra Pradesh.

4.

Changes of territorial divisions in Andhra Pradesh.

(1)

The territories specified in Part I of the First Schedule shall be included in, and form part of, Chittoor district; and the said territories, together with the territories comprised in the villages of Puttur taluk specified in the Third Schedule and the territories which immediately before the appointed day were comprised in Kanakammachatram and Tiruttani firkas of Tiruttani taluk but are not transferred by virtue of section 3 to the State of Madras, shall form a taluk to be known as Sathyavedu taluk in Chittoor district.

(2)

The territories which immediately before the appointed day were comprised in Pallipattu and Erumbi firkas of Tiruttani taluk but are not transferred by virtue of section 3 to the State of Madras shall be included in, and form part of, Puttur taluk.

(3)

The territories which immediately before the appointed day were comprised in Melpadi firka of Chittoor taluk but are not transferred by virtue of section 3 to the State of Madras shall be included in, and form part of, Chittoor firka of Chittoor taluk.

(4)

The territories specified in Part II of the First Schedule shall be included in, and form part of, Kuppam West firka of Palmaner taluk in Chittoor district.

5.

Changes of territorial divisions in Madras.

(1)

The territories which immediately before the appointed day were comprised in Sathyavedu firka of Ponneri taluk and Uttukkottai firka of Tiruvallur taluk but are not transferred by virtue of section 3 to the State of Andhra Pradesh shall be included in, and form part of, Gummidipundi firka of Ponneri taluk.

(2)

The territories specified in Parts I and II of the Second Schedule shall be included in and form a separate taluk to be known as Tiruttani taluk of Chingleput district; and in that taluk, the territories specified in Part II of that Schedule shall form a separate firka to be known as Kanakammachatram firka.

(3)

The territories specified in Parts III, IV, V, VI, VII and VIII of the Second Schedule shall respectively be included in, and form part of,--

(a)

Mappedu firka of Tiruvallur taluk of Chingleput district,

(b)

Parangi firka of Arkonam taluk of North Arcot district,

(c)

Arkonam firka of Arkonam taluk of North Arcot district,

(d)

Ranipet firka of Walajapet taluk of North Arcot district,

(e)

Gudiyattam East firka of Gudiyattam taluk of North Arcot district, and

(f)

Vaniyambadi firka of Tiruppattur taluk of North Arcot district.

6.

Amendment of First Schedule to the Constitution.

As from the appointed day, in the First Schedule to the Constitution, under the heading "I. THE STATES",--

(a)

for the entry against "1. Andhra Pradesh", the following shall be substituted, namely:--

"The territories specified in sub-section (1) of section 3 of the Andhra State Act, 1953, sub-section (1) of section 3 of the States Reorganisation Act, 1956, and the First Schedule to the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959, but excluding the territories specified in the Second Schedule to the last mentioned Act,"; and

(b)

in the entry against "7. Madras",--

(i)

after the words and figures "section 4 of the States Reorganisation Act, 1956", the words, brackets and figures "and the Second Schedule to the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959," shall be inserted; and

(ii)

for the words, brackets, letters and figures "and the territories specified in clause (b) of sub-section (1) of section 5, section 6 and clause (d) of sub-section (1) of section 7 of the States Reorganisation Act, 1956", the following shall be substituted namely:--

"the territories specified in clause (b) of sub-section (1) of section 5, section 6 and clause (d) of sub-section (1) of section 7 of the States Reorganisation Act, 1956 and the territories specified in the First Schedule to the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959".

7.

Saving powers of State Governments.

Nothing in the foregoing provisions of this Part shall be deemed to affect the power of the State Government of Andhra Pradesh or Madras to alter after the appointed day the name, extent or boundaries of any district, taluk, firka or village in the State.

Part III ? Representation In The Legislatures The Council Of States

8.

Amendment of Fourth Schedule to the Constitution.

As from the appointed day, in the Fourth Schedule to the Constitution, in the second column of the Table,--

(a)

for the figures "17" against Madras, the figures "18" shall be substituted; and

(b)

for the figures "220", the figures "221" shall be substituted.

9.

Bye-election to fill the additional seat.

(1)

As soon as may be after the appointed day, a bye-election shall be held to fill the additional seat allotted to the State of Madras in the Council of States by virtue of section 8.

(2)

The term of office of the member elected to the Council of States in pursuance of this section shall expire on the 2nd day of April, 1962.

The House of the People

10.

Amendment of First Schedule to the Delimitation Order.

The First Schedule to the Delimitation of Parliamentary and Assembly Constituencies Order, 1956, shall have effect

subject to the modifications specified in the Fourth Schedule to this Act.

11.

Provision as to sitting members.

Every sitting member of the House of the People representing a constituency the extent of which is altered by virtue of section 10 shall be deemed to have been elected to the said House by that constituency as so altered. The Legislative Assemblies

12.

Strength of Legislative Assemblies.

The total number of seats in the Legislative Assembly of Andhra Pradesh to be filled by persons chosen by direct election shall be reduced from 301 to 300 and that in the Legislative Assembly of Madras shall be increased from 205 to 206; and, accordingly, in the Second Schedule to the Representation of the People Act, 1950 (

43 of 1950

), for the figures "301" against "Andhra Pradesh", the figures "300" shall be substituted, and for the figures "205" against "Madras", the figures "206" shall be substituted.

13.

Amendment of Second Schedule to Delimitation Order.

The Second Schedule to the Delimitation of Parliamentary and Assembly Constituencies Order, 1956, shall have effect subject to the modifications specified in the Fifth Schedule to this Act.

14.

Amendment of Delimitation Commission's Final Order No. 19.

The Delimitation Commission's Final Order No. 19, dated the 4th October, 1954, shall have effect subject to the modifications specified in the Sixth Schedule.

15.

Provisions as to certain sitting members.

(1)

The sitting members of the Legislative Assembly of Andhra Pradesh representing the Vadamalpet, Vepanjeri, Chittoor and Kuppam constituencies shall, notwithstanding the alteration in the extent thereof by the provisions of this Act, be deemed to have been respectively elected to the said Assembly by the said constituencies as so altered.

(2)

The sitting members of the Legislative Assembly of Madras representing the Gummidipundi, Tiruvallur, Arkonam, Sholinghur, Ranipet, Gudiyattam, Vaniyambadi and Uddanpalli constituencies shall, notwithstanding the alteration in the extent thereof by the provisions of this Act, be deemed to have been respectively elected to the said Assembly by the said constituencies as so altered.

(3)

The sitting members of the Legislative Assembly of Andhra Pradesh representing the Tiruttani constituency shall, as from the appointed day, be deemed to have been elected to that Assembly by the Sathyavedu Constituency in the State of Andhra Pradesh.

(4)

The sitting member of the Legislative Assembly of Andhra Pradesh representing the Ramakrishnarajupet constituency shall, as from the appointed day, cease to be a member of that Assembly and be deemed to have been elected to the Legislative Assembly of Madras from the Tiruttani constituency in the State of Madras. The Legislative Councils

16.

Extent of Council constituencies.

(1)

Any reference in the Delimitation of Council Constituencies (Andhra Pradesh) Order, 1957, to the State of Andhra Pradesh or to Chittoor district shall be construed as excluding the territories transferred from that State or district, as the case may be, to the State of Madras and as including the territories transferred to that State or district, as the case may be, from the State of Madras.

(2)

Any reference in the Delimitation of Council Constituencies (Madras) Order, 1951, to the State of Madras or to Chingleput, North Arcot or Salem district shall be construed as excluding the territories transferred from that State or

district, as the case may be, to the State of Andhra Pradesh, and as including the territories transferred to that State or district, as the case may be, from the State of Andhra Pradesh.

17.

Sitting members.

Every sitting member of the Legislative Council of Andhra Pradesh or of Madras representing a Council constituency the extent of which is altered by virtue of section 16 shall, as from the appointed day, be deemed to have been elected to the said Council by that constituency as so altered.

Part IV ? High Courts

18.

Extension of jurisdiction of, and transfer of proceedings to, Andhra Pradesh High Court.

(1)

Except as hereinafter provided,--

(a)

the jurisdiction of the High Court of Andhra Pradesh shall, as from the appointed day, extend to the territories specified in the First Schedule; and

(b)

the High Court at Madras shall, as from that day, have no jurisdiction in respect of the said territories.

(2)

Such proceedings pending in the High Court at Madras immediately before the appointed day as are certified by the Chief Justice of that High Court, having regard to the place of accrual of the cause of action and other circumstances, to be proceedings which ought to be heard and decided by the High Court of Andhra Pradesh shall, as soon as may be after such certification, be transferred to the High Court of Andhra Pradesh.

(3)

Notwithstanding anything contained in sub-sections (1) and (2), but save as hereinafter provided, the High Court at Madras shall have, and the High Court of Andhra Pradesh shall not have, jurisdiction to entertain, hear or dispose of appeals, applications for leave to appeal to the Supreme Court, applications for review and other proceedings, where any such proceedings seek any relief in respect of any order passed by the High Court at Madras before the appointed day:

Provided that if, after such proceedings have been entertained by the High Court at Madras, it appears to the Chief Justice of that High Court that they ought to be transferred to the High Court of Andhra Pradesh, he shall order that they shall be so transferred, and such proceedings shall thereupon be transferred accordingly.

(4)

Any order made by the High Court at Madras--

(a)

before the appointed day in any proceedings transferred to the High Court of Andhra Pradesh by virtue of sub-section (2), or

(b)

in any proceedings with respect to which the High Court at Madras retains jurisdiction by virtue of sub-section (3), shall, for all purposes, have effect, not only as an order of the High Court at Madras, but also as an order made by the High Court of Andhra Pradesh.

(5)

Subject to any rule made or direction given by the High Court of Andhra Pradesh, any such person who immediately before the appointed day is an advocate entitled to practise in the High Court at Madras as may be specified in this behalf by the Chief Justice of the High Court of Andhra Pradesh having regard to the transfer of territories from the State of Madras to the State of Andhra Pradesh, shall be recognised as an advocate entitled to practise in the High Court of Andhra Pradesh.

19.

Extension of jurisdiction of, and transfer of proceedings to, Madras High Court.

(1)

Except as hereinafter provided,--

(a)

the jurisdiction of the High Court at Madras shall, as from the appointed day, extend to the territories specified in the Second Schedule; and

(b)

the High Court of Andhra Pradesh shall, as from that day, have no jurisdiction in respect of the said territories.

(2)

Such proceedings pending in the High Court of andhra Pradesh immediately before the appointed day as are certified by the Chief Justice of that High Court, having regard to the place of accrual of the cause of action and other circumstances, to be proceedings which ought to be heard and decided by the High Court at Madras shall, as soon as may be after such certification, be transferred to the High Court at Madras.

(3)

Notwithstanding anything contained in sub-sections (1) and (2), but save as hereinafter provided, the High Court of Andhra Pradesh shall have, and the High Court at Madras shall not have, jurisdiction to entertain, hear or dispose of appeals, applications for leave to appeal to the Supreme Court, applications for review and other proceedings, where any such proceedings seek any relief in respect of any order passed by the High Court of Andhra Pradesh before the appointed day:

Provided that if, after such proceedings have been entertained by the High Court of Andhra Pradesh, it appears to the Chief Justice of that High Court that they ought to be transferred to the High Court at Madras, he shall order that they shall be so transferred, and such proceedings shall thereupon be transferred accordingly.

(4)

Any order made by the High Court of Andhra Pradesh--

(a)

before the appointed day in any proceedings transferred to the High Court at Madras by virtue of sub-section (2), or

(b)

in any proceedings with respect to which the High Court of Andhra Pradesh retains jurisdiction by virtue of sub-section (3), shall, for all purposes, have effect, not only as an order of the High Court of Andhra Pradesh, but also as an order made by the High Court of Madras.

(5)

Subject to any rule made or direction given by the High Court at Madras, any such person who immediately before the appointed day is an advocate entitled to practise in the High Court of Andhra Pradesh as may be specified in this behalf by the Chief Justice of the High Court at Madras having regard to the transfer of territories from the State of Andhra Pradesh to the State of Madras, shall be recognised as an advocate entitled to practise in the High Court at Madras.

20.

Right to appear or act in any proceedings transferred under section 18 or section 19.

Any person who immediately before the appointed day is an advocate entitled to practise, or an attorney entitled to act, in the High Court of Andhra Pradesh or the High Court at Madras and was authorised to appear or to act in any proceedings transferred under section 18 or section 19 shall have the right to appear, or to act, as the case may be, in the High Court to which the proceedings have been transferred, in relation to those proceedings.

21.

Interpretation.

For the purposes of sections 18 and 19,--

(a)

proceedings shall be deemed to be pending in the High Court of Andhra Pradesh or the High Court at Madras until that Court has disposed of all issues between the parties, including any issue with respect to the taxation of the costs of the proceedings and shall include appeals, applications for leave to appeal to the Supreme Court, applications for review, petitions for revision and petitions for writs;

(b)

references to the High Court of Andhra Pradesh or the High Court at Madras shall be construed as including references to a Judge or division court thereof, and references to an order made by a court or a Judge shall be construed as including references to a sentence, judgment or decree passed or made by that court or Judge.

Part V ? Authorisation Of Expenditure

22.

Appropriation of moneys for expenditure in transferred territories under existing appropriation Acts.

(1)

As from the appointed day, any Act passed by the Legislature of the State of Andhra Pradesh or Madras before that day for the appropriation of any moneys out of the Consolidated Fund of the State to meet any expenditure in respect of any part of the financial year 1959-60 shall have effect also in relation to the territories transferred to that State by the provisions of Part II and it shall be lawful for the State Government to spend any amount in those territories out of the amount authorised by such Act to be expended for any service in that State.

(2)

The Governor of Andhra Pradesh or of Madras may, after the appointed day, authorise such expenditure from the Consolidated Fund of the State as he deems necessary for any purpose or service in the territories transferred to that State for a period of not more than three months beginning with the appointed day pending the sanction of such expenditure by the Legislature of the State.

23.

Reports relating to the accounts of Andhra Pradesh and Madras.

The reports of the Comptroller and Auditor-General of India referred to in clause (2) of article 151 of the Constitution relating to the accounts of the State of Andhra Pradesh or Madras in respect of any period prior to the appointed day shall be submitted to the Governor of each of the States of Andhra Pradesh and Madras who shall cause them to be laid before the Legislature of the State.

24.

Distribution of revenues.

Section 3 of the Union Duties of Excise (Distribution) Act, 1957 (55 of 1957), sections 3 and 5 of the Estate Duty and Tax on Railway Passenger Fares (Distribution) Act, 1957 (57 of 1957), section 4 of and the Second Schedule to the Additional Duties of Excise (Goods of Special Importance) Act, 1957 (

58 of 1957

), and paragraphs 3 and 5 of the Constitution (Distribution of Revenues) No.2 Order, 1957, shall, as from the appointed day, have effect subject to such modifications as the President may, by order published in the Official Gazette, specify having regard to the transfer of territories effected by the provisions of Part II of this Act.

Part VI ? Apportionment Of Assets And Liabilities

25.

Land and goods.

(1)

Subject to the other provisions of this Part, all land and all stores, articles and other goods, including cash balances in all treasuries in the territories specified in the First Schedule or the Second Schedule shall, as from the appointed day, pass to the State to which the territories are transferred.

(2)

In this section, the expression "land" includes immovable property of every kind and any rights in or over such property.

26.

Arrears of taxes.

The right of Andhra Pradesh or Madras to recover arrears of any tax or duty on property situate in the transferred territories, including land revenue, or to recover arrears of any other tax or duty in any case where the place of assessment of that tax or duty is in the transferred territories shall belong to the State to which the territories are transferred.

27.

Right to recover loans and advances.

The right to recover any loans or advances made before the appointed day by Andhra Pradesh or Madras to any local body, society, agriculturist or other person in the transferred territories shall belong to the State to which the territories are transferred.

28.

Refund of taxes collected in excess.

The liability of Andhra Pradesh or Madras to refund any tax or duty on property situate in the transferred territories, including land revenue, collected in excess shall be the liability of the State to which the territories are transferred, and

the liability of Andhra Pradesh or Madras to refund any other tax or duty collected in excess in any case where the place of assessment of that tax or duty is in the transferred territories shall also be the liability of the State to which those territories are transferred.

29.

Deposits.

The liability of Andhra Pradesh or Madras in respect of any civil deposit or local fund deposit made in the transferred territories shall, as from the appointed day, be the liability of the State to which the territories are transferred.

30.

Provident funds.

The liability of Andhra Pradesh or Madras in respect of the provident fund account of a Government servant in service on the appointed day shall, as from that day, be the liability of the State to which the Government servant is permanently allotted.

31.

Pensions.

The liability of Andhra Pradesh or Madras in respect of pensions shall be apportioned between those States in such manner as may be agreed upon between them or, in default of such agreement, in such manner as the President may, by notified order, specify having regard to the transfer of territories effected by this Act and the principles underlying the provisions of the Fifth Schedule to the States Reorganisation Act, 1956 (

37 of 1956

).

32.

Contracts.

(1)

Where, before the appointed day, the State of Andhra Pradesh or Madras has made any contract in the exercise of its executive power for any purposes of the State, that contract shall be deemed to have been made in the exercise of the executive power,--

(a)

if such purposes are, as from that day, purposes relatable exclusively to the transferred territories, of the State to which the territories are transferred; and

(b)

in any other case, of the State which made the contract; and all rights and liabilities which have accrued, or may accrue, under any such contract shall, to the extent to which they are rights or liabilities of the State which made the contract, be rights or liabilities of the State specified in clause (a) or clause (b) above.

(2)

For the purposes of this section, there shall be deemed to be included in the liabilities which have accrued or may accrue under any contract--

(a)

any liability to satisfy an order or award made by any court or other tribunal in proceedings relating to the contract; and

(b)

any liability in respect of expenses incurred in or in connection with any such proceedings.

(3)

This section shall have effect subject to the other provisions of this Part relating to the apportionment of liabilities in respect of loans, guarantees and other financial obligations; and bank balances and securities shall, notwithstanding that they partake of the nature of contractual rights, be dealt with under those provisions.

33.

Liability in respect of actionable wrong.

Where, immediately before the appointed day, the State of Andhra Pradesh or Madras is subject to any liability in respect of an actionable wrong, other than breach of contract, that liability shall,--

(a)

if the cause of action arose wholly within the transferred territories, be a liability of the State to which they are transferred; and

(b)

in any other case, continue to be a liability of the State which, immediately before that day, was subject to such liability.

34.

Liability as guarantor of co-operative societies.

Where, immediately before the appointed day, the State of Andhra Pradesh or Madras is liable as guarantor in respect of any liability of a registered co-operative society, that liability shall,--

(a)

if the area of the society's operations is limited to the transferred territories, be a liability of the State to which the territories are transferred; and

(b)

in any other case, continue to be a liability of the State which, immediately before that day, was subject to such liability.

35.

Items in suspense.

If any item in suspense is ultimately found to affect an asset or liability of the nature referred to in any of the foregoing provisions of this Part, it shall be dealt with in accordance with that provision.

36.

Power of Central Government to order allocation or adjustment in certain cases.

Where either Andhra Pradesh or Madras becomes entitled to any property or obtains any benefits or becomes subject to any liability, and the Central Government, on a reference made within a period of three years from the appointed day by either of the States, is of opinion that it is just and equitable that that property or those benefits should be transferred to, or shared with, the other State or that a contribution towards that liability should be made by the other State, the said property or benefits shall be allocated in such manner between the two States, or the other State shall make to the State subject to the liability such contribution in respect thereof, as the Central Government may, after consultation with the two State Governments, by order determine.

37.

Certain expenditure to be charged on the Consolidated Fund.

All sums payable by either Andhra Pradesh or Madras to the other State by virtue of the provisions of this Part shall be charged on the Consolidated Fund of the State by which such sums are payable.

Part VII ? Administrative Provisions

38.

Provisions as to certain Financial Corporations.

(1)

As from the appointed day, the Financial Corporation constituted under the State Financial Corporations Act, 1951 (63 of 1951

), for the State of Andhra Pradesh shall be deemed to have been constituted for that State with its area as altered by the provisions of Part II of this Act.

(2)

As from the appointed day, the Madras Industrial Investment Corporation constituted for the State of Madras shall be deemed to have been constituted for that State with its area as altered by the provisions of Part II of this Act.

39.

Amendment of Act 6 of 1942.

In the Multi-Unit Co-operative Societies Act, 1942, in section 5A, in sub-section (1), for the words and figures "any co-operative society which, immediately before the 1st day of November, 1956", the words "or any other enactment relating to reorganisation of States, any co-operative society which, immediately before the day on which the reorganisation takes place" shall be substituted.

40.

Provision as to State Electricity Boards and apportionment of their assets and liabilities.

(1)

As from the appointed day, the State Electricity Boards constituted under the Electricity (Supply) Act, 1948 (54 of 1948

), for the States of Andhra Pradesh and Madras shall be deemed to have been constituted for those States with their

areas as altered by the provisions of Part II of this Act.

(2)

The undertakings and assets of a State Electricity Board referred to in sub-section (1), situated in the territories specified in the First Schedule or, as the case may be, the Second Schedule shall, as from the appointed day, pass to the State to which the territories are transferred.

(3)

Subject to the provisions of sub-section (2), the assets and liabilities of the State Electricity Boards referred to in sub-section (1) shall be apportioned between them in such manner as may be agreed upon between the Governments of Andhra Pradesh and Madras within one year from the appointed day, or in default of such agreement, as the Central Government may by order determine.

(4)

Notwithstanding anything contained in sub-section (2), the arrangement which, immediately before the appointed day, was in force in regard to the generation or supply of electric power for the territories specified in the First Schedule or the Second Schedule shall continue to be in force after the appointed day on such terms and conditions and for such period as may be agreed upon between the Governments of Andhra Pradesh and Madras, or, in default of such agreement, as the Central Government may by order direct.

41.

Special provisions with regard to Araniar Project.

(1)

Notwithstanding anything contained in this Act, all rights and liabilities of the State of Madras in relation to the Araniar Project or the administration thereof shall, on the appointed day, be the rights and liabilities of the State of Andhra Pradesh and Madras, subject to such adjustments as may be made by agreement entered into by the said States or, if no such agreement is entered into within a period of one year from the appointed day, as the Central Government may by order determine having regard to the purposes of the Project, and any such order may provide for the management of the Project jointly by the said States or otherwise:

Provided that the order so made by the Central Government may be varied by any subsequent agreement entered into by the States of Andhra Pradesh and Madras.

(2)

An agreement or order referred to in sub-section (1) shall provide also for the rights and liabilities of the States of Andhra Pradesh and Madras in relation to any extension or further development of the Project after the appointed day.

(3)

The rights and liabilities referred to in sub-sections (1) and (2) shall include--

(a)

the rights to receive and to utilise water which may be available for distribution as a result of the Project; and

(b)

the rights and liabilities in respect of the administration of the Project and the construction, maintenance and operation thereof, but shall not include the rights and liabilities under any contract entered into before the appointed day by the Government of Madras.

(4)

The Central Government may, from time to time, give such directions as may appear to it necessary generally in regard to any of the matters specified in the foregoing provisions of this section and in particular, for the completion of the Project and its operation and maintenance thereafter:

Provided that no such direction shall be issued or have effect after an agreement has been entered into by the States of Andhra Pradesh and Madras under sub-section (1) or after an order has been made by the Central Government under that sub-section, whichever is earlier.

42.

Temporary provisions as to the continuance of certain existing road transport permits.

Notwithstanding anything contained in section 63 of the Motor Vehicles Act, 1939 (

4 of 1939

), a permit granted by the State Transport Authority of Andhra Pradesh or Madras or by any Regional Transport Authority in such State shall, if such permit was immediately before the appointed day valid and effective in any area

within the transferred territories, be deemed to continue to be valid and effective in that area after that day subject to the provisions of that Act as for the time being in force in that area; and it shall not be necessary for any such permit to be countersigned by the State Transport Authority or any Regional Transport Authority in the State to which the territories are transferred for the purpose of validating it for use in such area:

Provided that the Central Government may, after consultation with the State Governments, add to, amend or vary the conditions attached to the permit by the authority by which the permit was granted.

43.

Provisions relating to services.

(1)

Every person who, immediately before the appointed day, is serving in connection with the affairs of Andhra Pradesh or Madras shall, as from that day, continue so to serve, unless he is required by general or special order of the Central Government to serve provisionally in connection with the affairs of the other State.

(2)

As soon as may be after the appointed day, the Central Government shall, by general or special order, determine the State to which every person provisionally allotted to Andhra Pradesh or Madras shall be finally allotted for service and the date from which such allotment shall take effect or be deemed to have taken effect.

(3)

Every person who is finally allotted under the provisions of sub-section (2) to Andhra Pradesh or Madras shall, if he is not already serving therein, be made available for serving in that State from such date as may be agreed upon between the two State Governments or in default of such agreement, as may be determined by the Central Government.

(4)

Nothing in this section shall be deemed to affect, after the appointed day, the operation of the provisions of Chapter I of Part XIV of the Constitution in relation to the determination of the conditions of service of persons serving in connection with the affairs of Andhra Pradesh or Madras:

Provided that the conditions of service applicable immediately before the appointed day to the case of any person provisionally or finally allotted to Andhra Pradesh or Madras under this section shall not be varied to his disadvantage except with the previous approval of the Central Government.

(5)

The Central Government may at any time before or after the appointed day give such directions to either State Government as may appear to it to be necessary for the purpose of giving effect to the foregoing provisions of this section and the State Government shall comply with such directions.

44.

Provisions as to the continuance of officers in the same posts.

Every person who, immediately before the appointed day, is holding or discharging the duties of any post or office in connection with the affairs of Andhra Pradesh or Madras in any area which on that day falls within the other State shall continue to hold the same post or office in the State in which such area is included on that day and shall be deemed as from that day to have been duly appointed to that post or office by the Government of, or other appropriate authority in, such State:

Provided that nothing in this section shall be deemed to prevent the competent authority, after the appointed day, from passing in relation to such person any order affecting his continuance in such post or office.

Part VIII ? Legal And Miscellaneous Provisions

45.

Territorial extent of laws.

The provisions of section 3 shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extends or applies, and territorial references in any such law to Andhra Pradesh or Madras shall, until otherwise provided by a competent legislature or other competent authority, be construed as meaning the territories within that State immediately before the appointed day.

46.

Power to adapt laws.

For the purpose of facilitating the application of any law in relation to Andhra Pradesh or Madras, the appropriate Government may, before the expiration of one year from the appointed day, by order make such adaptations and

modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent authority or competent legislature.

Explanation.--In this section, the expression "appropriate Government" means, as respects any law relating to a matter enumerated in the Union List, the Central Government, and as respects any other law, the State Government.

47.

Power to construe laws.

Notwithstanding that no provision or insufficient provision has been made for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to Andhra Pradesh or Madras, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority.

48.

Power to name authorities, etc., for exercising statutory functions.

The Government of the State of Andhra Pradesh or Madras, as respects any territory transferred to that State by the provisions of Part II, may, by notification in the Official Gazette, specify the authority, officer or person who, as from the appointed day, shall be competent to exercise such functions exercisable under any law in force on that day as may be mentioned in that notification, and such law shall have effect accordingly.

49.

Legal proceedings.

Where, immediately before the appointed day, the State of Andhra Pradesh or Madras is a party to any legal proceedings with respect to any property, rights or liabilities transferred to the other State under this Act, the other State shall be deemed to be substituted for the State from which such property, rights or liabilities are transferred as a party to those proceedings, or added as a party thereto, as the case may be, and the proceedings may continue accordingly.

50.

Transfer of pending proceedings.

(1)

Every proceeding pending immediately before the appointed day before a court (other than a High Court), tribunal, authority or officer in any area which on that day falls within the State of Andhra Pradesh or Madras shall, if it is a proceeding relatable exclusively to any part of the territories which as from that day are the territories of the other State, stand transferred to the corresponding court, tribunal, authority or officer in the other State.

(2)

If any question arises as to whether any proceeding should stand transferred under sub-section (1), it shall be referred to the High Court having jurisdiction in respect of the area in which the court, tribunal, authority or officer before which, or before whom, such proceeding is pending on the appointed day, is functioning and the decision of that High Court shall be final.

(3)

In this section,--

(a)

"proceeding" includes any suit, case or appeal; and

(b)

"corresponding court, tribunal, authority or officer" in a State means--

(i)

the court, tribunal, authority or officer in which, or before whom, the proceeding would have lain if the proceeding had been instituted after the appointed day, or

(ii)

in case of doubt, such court, tribunal, authority or officer in that State as may be determined after the appointed day by the Government of that State, or before the appointed day by the Government of the other State, to be the corresponding court, tribunal, authority or officer.

51.

Right of pleaders to practise in certain courts.

Any person who, immediately before the appointed day, is enrolled as a pleader entitled to practise in any subordinate

courts in the transferred territories shall, for a period of six months from that day, continue to be entitled to practise in those courts, notwithstanding that the whole or any part of the territories within the jurisdiction of those courts has been transferred to another State.

52.

Effect of provisions inconsistent with other laws.

The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law.

53.

Power to remove difficulties.

If any difficulty arises in giving effect to the provisions of this Act, the President may by order do anything not inconsistent with such provisions which appears to him to be necessary or expedient for the purpose of removing the difficulty.

54.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules to give effect to the provisions of this Act.

(2)

Every rule made under this section shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or [in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid]

[Substituted by Act 4 of 1986, Section 2 and Sch. (w.e.f. 15-5-1986)]

both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

THE FIRST SCHEDULE

[See sections 3(a) and 4]

Territories transferred from the State of Madras to the State of Andhra Pradesh (Any reference in this Schedule to a census code number in relation to a village means the code number assigned to that village in the census of 1951)

Part I

..

Census Code No.

Santhavelur

1

Ayyavaripalayam

2

Ambur

3

Nelvoy

4

Marudavada

5

Kalathur

6

Gudalavaripalayam

7

Narasingapura Agraharam

8

Karipakkam

9

Pulivallam

10	
Kadur	
11	
Bangaruthimma Boopalapuram . . .	
12	
Vittayapalayam	
13	
Varadayapalayam	
14	
Kambakkam	
15	
Arudur	
16	
Bathalavallam	
17	
Kummarapeddavenkatapuram	
18	
Chedulapakkam	
19	
Vidiakadu	
20	
Shola Agraharam	
21	
Silamathur	
22	
Matterimitta	
23	
Thondur Agraharam	
24	
Chintamani Thangal	
25	
Chinnapudi Agraharam	
26	
Enadivettu	
27	
Racherla	
28	
Kovurpadu	
29	
Mopurpalli	
30	
Chengambakkam	
31	
Chiddama Agraharam	
32	
Ramachandrapuram	
33	
Thondambattu	
34	
Ambikapuram	
35	

Pandur	
36	
Padirikuppam	
37	
Chinnapandur	
38	
Madanapalayam	
39	
Gollavaripalayam	
40	
Chervi	
41	
Appayapalayam	
44	
Mallavarpalayam	
46	
Samurthikandigal	
53	
Repallavada	
54	
Rajagopalapuram	
55	
Balagopalapuram	
56	
Ranganathapuram	
57	
Dwarakapuram	
58	
Rallakuppam	
59	
Kolladam	
60	
Pravalaverneswarapuram	
61	
Mettupalayam	
62	
Govindapuram	
63	
Vanalur	
64	
Lakshmipuram	
65	
Peddaittivakkam	
66	
Chinnaittivakkam	
67	
Irugalam	
68	
Arur	
69	
Alamelumangapuram	

130	
Venkatarajukandigai	
131	
Kadirvedu	
135	
Sirunambudur	
136	
Peradam	
137	
Ambakkam	
138	
Pudukuppam	
139	
Madanambedu	
140	
Sathiavedu	
141	
Kothamarikuppam	
142	
Madanancheri	
144	
Thondukuli	
145	
2. The entire forest areas situated in Ponneri taluk of Chingleput district and lying to the west of any of the villages specified in item 1	
3. The following villages in Tiruvallur taluk of Chingleput district:--	
Census Code No.	
Mudiyur	
1	
Rappalpattu	
2	
Sadasivasankarapuram	
3	
Jamoukesavapuram	
4	
Vengalampattu	
5	
Vellur	
6	
Beerakuppam	
7	
Lakshmikanthapuram	
8	
Kadivedu	
9	
Janakipuram	
10	
Rajulukandigai	
11	
Anamathukandigai	
12	

Vajjarvarikandigai	13
Kannavaram	14
Tirupuranthakapuramkottai	15
Chinthalakunta	16
Raghunathapuram alias Chengalvarayakandigai.	17
Naidugunta	18
Bhoopathiswarapuram	19
Pisatoor	20
Appambattu	21
Ramagiri	22
Krishnapuram	23
Kalancheri	24
Nagalapuram	25
Vembakkam	26
Kottakkadu	27
Nandanam	28
Baitakodiyambedu	29
Balijakandigai	30
Mavettimolakandigai	31
Neervoy	32
Velur	33
Rajanagaram	34
Alapakkam	35
Alappakkamkandigai	36
Urur	37
Agaram	

38	
Devadarikodiyambedu	
39	
Vengalathur	
40	
Kuppamkandigai	
41	
Pillarikandigai	
42	
Kottur	
43	
Sidderajulkandigai	
44	
Pulipedu alias Govardhanagiri	
45	
Mithilapuram	
46	
Obularajukandigai	
47	
Narayanarajukandigai	
48	
Karur alias Krishnagiri	
49	
Adivikodiyambedu	
50	
Pulikundram	
51	
Adivisankarapuram	
52	
Krishnapuramkandigai	
53	
Silamathur alias Bangala	
54	
Nallappanaidu Kandigai	
55	
Yalur Ravannavaradanna Kandigai	
56	
Chinnapattu	
57	
Subbanaidukandigai	
58	
Achama Kandigai	
59	
Karanai	
60	
Pallampattadai	
61	
Krishnapuram Agraharam	
62	
Surattupalli	
63	

Ururpet

64

Thimmanambakkam

65

Athur

66

Sivagiri

67

Hanumanthapuram

73

Alagirikandigai

74

Shamshedbahadhurpet

75

Sriramapuram

76

Siddavinayakapuram

77

Chengalarayapuram

78

Polichettigunta

80

Desikuppam

84

Senneri.

85

4. The entire forest area lying to the north of the villages specified in item 3 and the forest area lying to the north of the village Desikuppam (Census Code No. 84).

Part II

The following villages in Krishnagiri taluk of Salem district:--

Census Code No.

Onnappanaikenkothur

18

Thaliagraharam

23

Kotamaganapalli

24

THE SECOND SCHEDULE

[See sections 3(b) and 5]

Territories transferred from the State of Andhra Pradesh to the State of Madras (Any reference in this Schedule to a census code number in relation to a village means the code number assigned to that village in the census of 1951.)

Part I

1. The following village in Puttur taluk of Chittoor district:--

Census Code No.

Gopalakrishnapuram

134

2. . The following villages in Tiruttani taluk of Chittoor district:--

Census Code No.

Veligaram

5

Melkalpatteda	
6	
Pallipat	
7	
Surarajupatteda	
8	
Rangepalle	
9	
Kolathur	
10	
Kolathur-Ramiahkandriga	
11	
Nediyam	
12	
Aravasipatteda	
13	
Samanthavada	
14	
Karimbedu	
15	
Kesavarajupuram	
16	
Ramachandrapuram	
17	
Chinnatimmarajupatteda	
18	
Venkatarajukuppam	
19	
Sangeethakuppam	
20	
Thirumalrajupet	
21	
Tirunadharajupuram	
22	
Kumararajupeta	
23	
Melapudi	
24	
Reddipalli Subbaraokhandriga	
25	
Puranam Sanjeevirayunikhandriga	
26	
Punyam	
27	
Patnam Seshayyakhandriga	
28	
Kadapanthangal	
29	
Kaverirajupeta alias Sri Kaverirajulungaripet	
30	
Bommarajupeta	

31	
Gollalakuppam	
32	
Chandrappanaidukhandriga	
33	
Chinnamudipalli	
34	
Kesavarajukuppam	
35	
Nallattur	
45	
Chivvada	
46	
Siddanthipuram	
47	
Kondapuram	
48	
Proddatturpet (Non-City Urban) . . .	
49	
Ragimanukhandrigai	
50	
Pandravedu	
51	
Gantavarikuppam	
52	
Sitaramapuram	
53	
Vadakuppam	
54	
Karlambakkam	
55	
Konasamudram	
56	
Kakalur	
57	
Vengalrajukuppam	
58	
Ramapuram	
59	
Poonimangadu	
60	
Venkatapura Agraharam	
61	
Kodivalasa	
63	
Athimanjeri	
64	
Venkatapuram	
65	
Kothakuppam	
66	

Petakandriga	
67	
Jangalapalli	
68	
Nedigallu	
69	
Ponbadi Gollakuppam	
70	
Kodanda Gollakuppam	
71	
Nemali	
72	
Madduru	
74	
Chinna Athimanageri	
79	
Nochili	
81	
Keechalam	
82	
Ramasamudram	
83	
Ulchiguruvarajukhandriga	
84	
Konugarikuppam	
85	
Gownipuram Badrarajukhandriga	
86	
Alimelumangapuram	
87	
Singarajapuram	
88	
Thayamambapuram	
89	
Pompadi alias Pommadi	
90	
Korakuppam	
97	
Narasampeta	
99	
Rajanagaram Santhayatham	
100	
Kannikambapuram	
101	
Balakrishnapuram	
102	
Dwarakapuram	
103	
Krishnamarajukuppam	
104	
Venugopalapuram	

105	Royasam Venkatakrishnayya Khandri . .
106	Krishnasamudram
107	Tiruvengalanadharajapuram
109	Ramachandrapuram
110	Talavedu
111	Narayanasamudram Agraharam . . .
112	Balakrishnapuram
120	Murukambattu
121	Subramanyapuram
123	Ramachandrapuram
124	Sathrunjayapuram
125	Medinipuram
126	Srinivasapuram
127	Srinivasayya Khandriga
128	Gownipuram Chinnasubbaraju Khandriga .
135	Siddayyagunta Khandriga
136	Madirajuperumalraju Khandriga . . .
137	Elavarthimummalraju Khandriga . . .
138	Chiralagurrappa Khandriga
139	Nallur Perumalraju Khandriga . . .
140	Ulchirangaraju Khandriga
141	Chinthalangunta Khandriga
142	Nalluru Venkataraju Khandriga . . .
143	Sirugumi
144	Veeranaidupalem
145	

Rajakallarapuram	146
Suryanagaram	147
Shotriam Bommarajapuram	148
Tekkulur	149
Singasamudram	161
Perumkanchi Narasimhuni Khandriga . .	162
Veerakaverirajapuram	163
Erramasetti Narasimhuni Khandriga . .	164
Kumara Bommarajapuram	165
Chengalvapuram Agraharam	166
Dharanivarahapuram	167
Velanjeri	168
Srinivasapuram	169
Sandayatham Anjaneyapuram	175
Anjaneyapuram	176
Pakala Narayana Reddikhandriga . . .	178
Rajanagram (included in village No. 100) .	179
Thaduru	180
Talari Thangal	181
Errappanaidukhandriga	182
Veerakanellore	183
Netterikhandriga	184
Makamambapuram	185
Narayana Puram	186
Kasinadhapuram	187
Pattabiramapuram	

188	
Velayudakuppam	
189	
Vinayakapuram	
190	
Kadananagaram	
192	
Yagnapuram	
193	
Janakarajakuppam	
194	
Anandhavallipuram	
196	
Tyagapuram	
197	
Mohinipuram	
198	
Appukondayyakhandriga	
199	
Mutyalavaripalle	
200	
Lakshmipuram	
201	
Raghavanaidukuppam	
202	
Ayyavarinaidu Khandriga	
203	
Kondapuram	
204	
Ammavarikuppam	
205	
Narayanapuram	
206	
Mosur	
207	
Vanganur	
208	
Krishnakuppam	
209	
Chengalvarayudukhandriga	
210	
Sirigirirajubadrarajukhandriga	
211	
Madurapuram	
212	
Changareddi Narayanareddikhandriga	
213	
Santhana Venugopalapuram	
214	
Koramangalam	
215	

Pratapa Uddandamakarapuram . . .	
216	
Agoor	
217	
Amruthapuram	
218	
Tiruttani (Non-City Urban)	
219	
Tiruttani (Rural)	
220	
Meldevadhanam	
221	
Keeldevadhanam	
222	
Kaveripuram	
226	
Khandapuram	
227	
Ramakrishnarajupet	
228	
Bhadrarajukhandriga	
229	
Srikrishnapuram	
230	
Thummalcheruvukhandriga	
231	
Maharajapuram	
232	
Akkachikuppam	
233	
Beerakuppam	
234	
Perumalmanyamkhandriga	
235	
Veerakaverirajapuram	
236	
Kanchiguruvarajakhandriga	
237	
Devasenapuram	
240	
Mahankalipuram	
242	
Ramajosyulukhandriga	
243	
Balapuram	
244	
Sreekalikapuram	
245	
Chandravilasapuram	
246	
Ramapuram Agraharam	

247	
Govatsapuram	
248	
Srikrishnapuram	
249	
Velurukrishnamanaidukhandriga . . .	
250	
Lakshminarasimhapuram	
251	
Thondamanatinarayanareddikhandriga . .	
252	
Senagalathur Agraharam	
253	
Cherukunur	
254	
Perumathangal	
255	
Kannikapuram	
256	
Valliyammapuram	
257	
Padmapuram	
258	
Karthikeyapuram	
259	
Perumalthangal	
260	
Damaneri	
266	
Swethavarahapuram	
267	
Vellatur	
268	
Ammaneri	
269	
Kondapuram	
270	
Venkataperumalrajapuram	
272	
Tirunadharajapuram	
275	
Veeramangalam	
277	
Audivarahapuram	
278	
Mambakkam	
279	
Peddakadambur	
280	
Peddanagapudi	
281	

Devakipuram	
282	
Kasavarajupet	
283	
Bikkasanivengamanaidukhandriga . . .	
284	
Chinnakadambur	
285	
Nayudu Thopu	
289	
Vediyangadu	
291	
Devalambapuram Makarajapuram . . .	
292	
Chinnanagapudi	
293	
Eerumbi alias Aswarevanthapuram . . .	
294	
Viranathur	
295	
Ayyaneri	
296	
Singarajapuram	
300	
Gopalapuram	
301	
Chinnaramapuram	
302	
Peddaramapuram	
303	
Chanurmallavaram	
304	
Koleri alias Sahasrapadanapuram . . .	
305	
Mylarwada	
311	
Makamambapuram	
312	
Tirumalambapuram	
313	
Parabhayankarapuram	
314	
Mesaragantapuram	
315	
Makamambapuram	
316	
Nilotpalapuram	
317	
Padmapuram	
318	
Paivalasa	

319

Katarikuppam

320

Part II

The following villages in Tiruttani
taluk of Chittoor district:--

Census Code No.

Arumbakkam

75

Arumgolam

91

Thirukkolamkhandriga

92

Mamandur

113

Nekkiniagraharam

115

Nekkinipeta

116

Venugopalakrishnapuram

117

Nedambaram

129

Raghunadhapuram

130

Sithapuram

131

Patramthangal

132

Panapakkam

133

Arcotkuppam

150

Gulur

151

Kanjipadi

152

Rangapuram

153

Nabaloor

170

Kunnathur

171

Illupur

172

Muddukondapuram

173

Ramapuram

223

Kaverirajupuram

238

Kurmavilasapuram	
239	
Ramalingapuram	
261	
Parasapuram	
262	
Venugopalapuram	
263	
Veeraraghavapuram	
286	
Tiruvelangadu	
287	
Narthavada	
288	
Dhanushayapuram	
290	
Palayanur	
297	
Bhagavatha Pattabhiramapuram . . .	
298	
Pulavanalluru	
299	
Banapuram	
306	
Vyasapuram	
307/1 and 307/2	
Rajapadmapuram	
308	
Rajaratnapuram	
309	
Jagirmangalam	
310	
Shrotriam Pattabhiramapuram alias Chinna-mapet . .	
.	
324	
Tholudavoor	
325	
Marudavallipuram	
326	
Manoor	
327	
Kuppam Khandriga	
328	
Harischandrapuram	
329	
Lakshmivilasapuram	
330	
Saunakapuram	
331	
Orathur	
332	

Paakasala

333

Japti Shrotrium Ramapuram

334

Peddakalakattur

335

Chinnamandali

336

Kalambakam

338

Part III

The following village in Tiruttani taluk of Chittor district:--

Census Code No.

Chitrambakkam

337

Part IV

The following villages in Tiruttani
taluk of Chittor district:--

#Census Code No.

Perumalrajupeta

321/1 and 321/2

Thandlam

322

Nandhimangalam

323

Part V

The following hamlets in Tiruttani
taluk of Chittoor district:--

Census Code No.

Ambarishapuram

307/3

Sukapuram

307/4

Part VI

The following villages in Chittoor
taluk of Chittoor district:--

Census Code No.

Avularangaiahpalle

248

Gollavaripalle

277

Thengal

279

Balekuppam

280

Ammavaripalle

337

Kondamanayanipalem

351

Paramasattu

352

Madandakuppam

353

Gollapalle

354

Mahimandalam

363

Perumallakuppam

364

Erukambat

365

Vellimalai

366

Mutharasikuppam

368

Vennampalle

369

Kodukkanthangal

370

Elayanellore

371

Thempalle

372

Sripadanellore

373

Veppalai

374

Melpadi

375

2. The entire forest area lying to the north and south of the village of Mahimandalam (Census Code No. 363).

Part VII

1. The following villages in Chittoor taluk of Chittoor district:--

Census Code No.

Dakshinapathapalle

290

Puttavaripalle

295

Rangasamudram

297

Vidyasankarapuram

298

Viludonapoliem

299

Varadareddipalle

300

Veerisettipalle

301

Paradarami

302

2. The forest area lying between the above villages and Gudiyattam taluk.

Part VIII

The following areas in Palmaner taluk of Chittoor district:--

(a)

the area surrounding the Javvajiramasamudram tank bounded--

(i)

on the east, by the existing boundary between Javvajiramasamudram village included in Alasandapuram village (Census Code No. 33) of Tiruppattur taluk of North Arcot district of Madras State and the State of Andhra Pradesh,

(ii)

on the south, by the existing boundary between the said Javvajiramasamudram village and the State of Andhra Pradesh and its continuation directly westwards to the top of the adjoining hill,

(iii)

on the west, by a line running along the top of the two hills lying to the west of the said tank, and

(iv)

on the north, by a line running along the peaks of the four hills lying to the north of the said tank and joined up to the north-west corner of the said Javvajiramasamudram village;

(b)

the area surrounding the Gollapalle tank bounded--

(i)

on the east and the south, by the existing boundary between Gollapalle village included in Alasandapuram village (Census Code No. 33) of Tiruppattur taluk of North Arcot district of Madras State and the State of Andhra Pradesh,

(ii)

on the west, by a line running along the bottom of the hill situated to the west of the said tank, and

(iii)

on the north, by a line running along the bottom of the hill situated to the north of the said tank.

THE THIRD SCHEDULE

[See section 4(1)]

(Any reference in this Schedule to a census code number in relation to a village means the code number assigned to that village in the census of 1951.)

The following villages of Nagari firka in Puttur taluk:--

Census Code No.

Padiri

147

Aroor

150

Kunamarajupaliem

151

Ellassamudram

151

Kaipakam

151

Kalikapuram

152

Buchivanatham

153

Samireddikandigai

153

Ishtakameswarapuram

153

Seetharamapuram Agraharam

153

Gangamambapuram

153

Ammagunta	153
Pannur	154
Jagannadhapuram	155
Kaliambakam	156
Madhavaram	156
Chavarambakam	157
Kachervedu	158
Elakatoor	159
Mathusri Venkatamambapuram	159
Thippapuram	159
Illupururamiah Khandriga	159
Sriramapuram	173
Paddapatteda	173
Sadasivapuram	173
Kavanur	174
Palukuru Subbarayudu Khandriga . . .	174
Koppedu Acharyulu Khandriga . . .	175
Koppedu Kapulu Khandriga . . .	175
Keelapudi	176
Gajasingarajapuram	176
Akkagaripeta	176
Nindra	177
Samayapuram	177
Netteri	178

THE FOURTH SCHEDULE

(See section 10) Modifications of the First Schedule to the Delimitation of Parliamentary and Assembly Constituencies Order, 1956.

1. The Note at the end of the Part "1--ANDHRA PRADESH" shall be numbered as "NOTE I" and the following shall be added thereto, namely:--

"NOTE 2.--Any reference to Chittoor district in column 3 of this Part shall be taken to mean the area comprised within that district on the appointed day as defined in the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959." 2. In the Part "7--MADRAS",--

(a)

in the entry in column 3 against serial No. 194, for the words "Gummidipundi and Sathyavedu firkas in Ponneri taluk" the words "Gummidipundi firka in Ponneri taluk" shall be substituted;

(b)

in the entry in column 3 against serial No. 195, for the words "Tiruvallur taluk, and Gummidipundi and Sathyavedu firkas", the words "Tiruvallur and Tiruttani taluks and Gummidipundi firka" shall be substituted;

(c)

the Note at the end shall be numbered as "NOTE 1" and the following shall be added thereto, namely:--

"NOTE 2.--Any reference in column 3 of this Part to a district, taluk or firka the extent of which has been altered by the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959, shall be taken to mean the area comprised within that district, taluk or firka on the appointed day as defined in that Act."

THE FIFTH SCHEDULE

(See section 13)

Modifications of the Second Schedule to the Delimitation of Parliamentary and Assembly Constituencies Order, 1956.

1. In the Part "1--ANDHRA PRADESH",--

(a)

for the entries in columns 2 and 3 against serial No. 118, the entries "Sathyavedu" and "Sathyavedu taluk; and Nagari firka in Puttur taluk," shall, respectively, be substituted;

(b)

the whole of serial No. 119 shall be omitted;

(c)

the Note at the end shall be numbered as "NOTE 1" and the following shall be added thereto namely:--

"NOTE 2.--Any reference in column 3 of this Part to a district, taluk or firka the extent of which has been altered by the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959, shall be taken to mean the area comprised within that district, taluk or firka on the appointed day as defined in that Act.";

(d)

in the Annexure, the whole of parts (63) and (64) shall be omitted and for part (62), the following shall be substituted, namely:--

"(62) Villages comprising the firka of Nagari in Puttur Taluk

1. Satravada.
2. Mittapalem.
3. Mudipalle.
4. Saraswathivilasapuram.
5. Melapattu.
6. Therani.
7. Ekambarakuppam.
8. Salvapatteda.
9. Nagari.
10. Taduku.
11. Tadukupet.
12. Veerakaverirajapuram.
13. Keelapattu.
14. Nettamkhandigai.
15. Sri Venkataperumalarajapuram.
16. Nagarajakuppam.
17. Dharmavaram Venkatramiah Khandriga.

18. Kannikapuram.
19. Tirumalraj Kandigai.
20. Sriranganagara Agraharam.
21. Velavadi.
22. Mangadu.
23. Bugga Agraharam.
24. Damarapakam,
25. Ayanambakam.
26. Thirupathi Venkatacharyulu Khandriga.
27. Agaram.
28. Iruguvo.
29. Thumbur.
30. Nainaru.
31. Palamangalam Dakshinapu Khandriga.
32. Palamangalam Uttarapu Khandriga."

2. In the Part "7--MADRAS",--

(a)

in the entry in column 3 against serial No. 13, for the words "Gummidipundi and Sathyavedu firkas", the words "Gummidipundi firka" shall be substituted;

(b)

for the entry in column 3 against serial No. 14, the following entry shall be substituted, namely:--

"Gummidipundi firka in Ponneri taluk and Kannigaipper firka [excluding the villages specified in item (1) of the Appendix] in Tiruvallur taluk";

(c)

for the entry in column 3 against serial No. 15, the following entry shall be substituted, namely:--

"Tiruvallur taluk [excluding Kannigaipper firka but including the villages specified in item (1) of the Appendix]; and Kanakammachatram firka in Tiruttani taluk";

(d)

after serial No. 15, the following entry shall be inserted, namely:--

"15A Tiruttani Tiruttani 1 Nil Nil"; taluk (excluding Kanakam- machatram firka) (e) in the entry in column 3 against serial No. 32 and serial No. 34, for the brackets and figure "(1)", the brackets, figure and letter "(1A)" shall be substituted;

(f)

the Note at the end shall be numbered as "Note 1" and the following shall be added thereto, namely:--

"NOTE 2.--Any reference in column 3 of this Part to a district, taluk or firka the extent of which has been altered by the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959, shall be taken to mean the area comprised within that district, taluk or firka on the appointed day as defined in that Act.";

(g)

in the Appendix, the heading "NORTH ARCOT DISTRICT" which bears the number "(1)" shall be renumbered as "(1A)" and before that heading as so renumbered, the following shall be inserted, namely:--

"CHINGLEPUT DISTRICT

(1)

Villages in Kannigaipper firka in Tiruvallur taluk included in Tiruvallur constituency

1. Sembedu.
2. Vengal.
3. Avanambakkam.
4. Agaram.
5. Magaral.
6. Sethupakkam.
7. Guruvayal.
8. Arkampattu.
9. Damarapakkam.

10. Komakambedu.
11. Karani.
12. Koduvali.
13. Songilicuppam.
14. Ayalacheri.
15. Puducuppam."

THE SIXTH SCHEDULE

(See section 14)

Modifications of the Delimitation Commission's Final Order No. 19, dated the 4th October, 1954

1. In Table B,--

(a)

for the entries in columns 2 and 3 against serial No. 121 the entries "Sathyavedu" and "Sathyavedu taluk; and Nagari firka in Puttur taluk." shall, respectively be substituted;

(b)

the whole of serial No. 122 shall be omitted;

(c)

the Note at the end shall be numbered as "NOTE 1" and the following shall be added thereto, namely:--

"NOTE 2.--Any reference in column 3 of this Part to a district, taluk or firka the extent of which has been altered by the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959, shall be taken to mean the area comprised within that district, taluk or firka on the appointed day as defined in that Act."

2. In the Schedule, the whole of parts (63) and (64) shall be omitted and for part (62), the following shall be substituted, namely:--

"(62) Villages comprising the firka of Nagari in Puttur Taluk

1. Satravada.
2. Mittapalem.
3. Mudipalle.
4. Saraswathivilasapuram.
5. Melapattu.
6. Therani.
7. Ekambarakuppam.
8. Salvapatteda.
9. Nagari.
10. Taduku.
11. Tadukupet.
12. Veerakaverirajapuram.
13. Keelapattu.
14. Nettamkhandigai.
15. Sri Venkataperumalarajapuram.
16. Nagarajakuppam.
17. Dharmavaram Venkatramiah Khandriga
18. Kannikapuram.
19. Tirumalraj Kandigai.
20. Sriranganagara Agraharam.
21. Velavadi.
22. Mangadu.
23. Bugga Agraharam.
24. Damarapakam.
25. Ayanambakam.
26. Thirupathi Venkatacharyulu Khandriga.
27. Agaram.
28. Iruguvo.

29. Thumbur.

30. Nainaru.

31. Palamangalam Dakshinapu Khandriga.

32. Palamangalam Uttarapu Khandriga.".

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